

2:00 PM

LINE 8

26-CIV-04417

EDWARD J. MOREY VS. CSAA INSURANCE EXCHANGE, ET AL.

EDWARD J. MOREY  
CSAA INSURANCE EXCHANGE

GAIL J. LAMCHICK  
ROBERT K. PHILLIPS

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MOTION TO COMPEL ARBITRATION AND FOR APPOINTMENT OF ARBITRATOR

**TENTATIVE RULING:**

Petitioner Edward J. Morey's Petition for Order Compelling Arbitration and Appointment of Arbitrator is GRANTED-IN-PART, as follows:

This Petition to Compel Arbitration relates to an underlying incident on November 15, 2020 during which Petitioner Edward J. Morey sustained bodily injury caused by an underinsured motor vehicle driven by Tyler Della, who was under the influence of alcohol. The insurer that issued the policy covering the vehicle driven by Tyler Della has paid its policy limit to Petitioner. Petitioner was covered by an automobile insurance policy issued by Respondent CSAA Insurance Exchange ("CSAA"). Petitioner was also covered by an umbrella insurance policy from Respondent Chubb Indemnity Insurance Company ("Chubb") providing excess uninsured and underinsured motorist bodily injury liability insurance coverage of \$1,000,000.

Petitioner here moves to compel a single consolidated arbitration pursuant to apparent arbitration agreements in each relevant insurance policy.

California law strongly favors arbitration, finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Petitioner, as the one bringing the motion, bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

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Here although Petitioner does not provide the arbitration agreement, both respondents, CHUBB Indemnity Insurance Company and CSAA Insurance Exchange, agree that there are arbitration agreements and they do not oppose a consolidated arbitration.

Respondent CSAA has filed an Opposition indicating that while they are not opposed to selecting an arbitrator and commencing arbitration or to a consolidated arbitration hearing, they oppose Petitioner's request that both Respondents be ordered to jointly retain a single law firm and request for an award of costs. Petitioner has withdrawn both requests to which Respondent CSAA objects.

Respondent CHUBB Indemnity Insurance filed a declaration stating that they oppose only the request that only one counsel be retained to represent both CSAA and Chubb. Because that request has been withdrawn, Respondent Chubb does not oppose Petitioner's remaining requests.

The Petition proposes that the Court select an arbitrator from the following list:

- Hon. Alfred G. Chiantelli (Ret.)
- Debra Bogaards, Esq.
- Hon. Bonnie Sabraw (Ret.)
- Richard Phelps. Esq.

No opposition was presented as to any of the proposed arbitrators. The Court, therefore, appoints the Hon. Alfred G. Chiantelli (Ret.) pursuant to the arbitration agreements contained within the relevant insurance policies pursuant to the parties' agreement as indicated by the filings discussed herein to conduct the consolidated arbitration. If he is unavailable, the Court then appoints the Hon. Bonnie Sabraw (Ret.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 9

26-CIV-05203

GAIL WILKERSON VS. EXTRA SPACE STORAGE INC., ET AL.

GAIL WILKERSON

PRO SE

EXTRA SPACE STORAGE INC., A DELAWARE CORPORATION

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MOTION FOR PRELIMINARY INJUNCTION

**TENTATIVE RULING:**

Pro se plaintiff Gail Wilkerson's motion for preliminary injunction is DENIED WITHOUT PREJUDICE.

Initially, the Court notes there is no proof of service upon Defendant Extra Space Storage Inc. of the instant motion. However, Defendant filed an opposition which waives the defect. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288.)

**Background**

Plaintiff allegedly has been a customer of defendant Extra Space Storage Inc. at their East Palo Alto facility for over 15 years where she stored personal property in Unit A4. (Compl. ¶ 4.) The underlying action arose after defendant scheduled a lien sale of the contents of Unit A4 for July 7, 2026. at 10:00 a.m., based on a claimed lien amount of \$1,479.15. (Compl. ¶ 9.) Plaintiff filed the instant action seeking to enjoin defendant from their action.

Defendant opposes, contending that the motion fails for several reasons, including (1) Plaintiff's motion does not satisfy California Code of Civil Procedure section 527 because it is not based on a verified complaint or affidavits and because notice was not provided to Defendant; (2) Plaintiff failed to meet the burden required for injunctive relief; (3) the scope of the requested relief far exceeds preservation of the status quo; and (4) Plaintiff has agreed to amend her pleading.

**Legal Standard**

Code of Civil Procedure section 527, subdivision (a) provides in part that: "An injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." The standard for the issuance of a preliminary injunction is as follows:

"As a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (*White v. Davis* (2003) 30 Cal.4th 528,554 [133 Cal.Rptr.2d 648, 68 P.3d 74] (*White*)); see *Butt v. State of*

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